

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CLBC064356: DAVID LEIGHTON vs JANE DOE, et al.
07/16/2026 in Department 21
Motion to Consolidate

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Jane Doe’s Motion for Total Consolidation (*Opposed*)

Tentative Ruling:

Defendants Steve Bingham and Jane Doe’s motion to consolidate limited civil case no. 2026CLBC064356 with small claims case no. 2026SC066328 is DENIED without prejudice.

The two actions appear to involve the same parties, tenancy, property, and overlapping claims for damages. Ordinarily, CCP § 1048 permits consolidation of actions involving common questions of law or fact when consolidation would avoid unnecessary costs, delay, duplication, or inconsistent results.

The requested relief, however, concerns consolidation of a small claims action with an ordinary limited civil action. The specific procedures of the Small Claims Act govern over the general consolidation statute. (*Jellinek v. Superior Court* (1991) 228 Cal.App.3d 652, 658-659; *Acuna v. Gunderson Chevrolet, Inc.* (1993) 19 Cal.App.4th 1467, 1471-1473.)

CCP § 116.390 permits transfer of a small claims action only where the small claims defendant has a related claim against the small claims plaintiff exceeding the jurisdictional limits of the small claims court, has commenced an action on that claim in a court of competent jurisdiction, and timely seeks transfer through the prescribed procedure.

Defendants have not established those requirements. They have not shown that they possess an affirmative claim against Plaintiff exceeding the small claims jurisdictional limit. The limited civil action was commenced by Plaintiff against Defendants, not by Defendants against Plaintiff.

The motion is not supported by a declaration or pleading asserting a qualifying claim and does not demonstrate compliance with CCP § 116.390's filing and service requirements.

The fact that the limited civil action was filed first does not independently authorize merger of the cases or displace the specific requirements governing small claims proceedings.

Plaintiff's opposition reaches the correct result, although several of his arguments are not material to the present motion. Defendants seek to move the small claims action into the limited civil action, not to reduce the limited civil action to small claims. Plaintiff's arguments concerning credit reporting, litigation tactics, courthouse convenience, and Defendant Bingham's prior litigation history do not determine whether consolidation is statutorily authorized.

Plaintiff's request that the Court take judicial notice of Defendant Bingham's alleged history of unlawful detainer litigation is DENIED. Plaintiff has not sufficiently identified or submitted judicially noticeable records, and the alleged history is not material to the statutory issue presented.

The Court does not determine Plaintiff's right to amend the complaint in ruling on this motion. Because possession is no longer at issue, Cal. Civ. Code § 1952.3 governs any request to amend the former unlawful detainer complaint to seek additional damages.

The denial is without prejudice to any procedurally proper request for transfer that Defendants may be entitled to present under CCP § 116.390.

Plaintiff to give notice.